

24CV03179 Jennifer Renga vs John Lawrence Freeman

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-05

Motion: CMC; Motion Leave

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Tentative Ruling: Jennifer Renga vs John Lawrence Freeman

Case Number

24CV03179

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/05/2026 - 10:00

Nature of Proceedings

CMC; Motion Leave

Tentative Ruling

For the reasons discussed below, plaintiff's motion for leave to file her second amended complaint is granted. Plaintiff shall separately file and serve the second amended complaint no later than June 12, 2026. Defendant shall file and serve a responsive pleading per code.

Defendant is granted leave to conduct a second deposition of plaintiff, if he deems it necessary, relating to the claims asserted by plaintiff of defamation and slander per se.

Background:

The first amended complaint (FAC) filed by plaintiff Jennifer Renga on August 8, 2024, is the operative pleading. In the FAC, plaintiff alleges twelve causes of action against defendant John Lawrence Freeman: (1) retaliation in violation of Government

Code section 12900 (the California Fair Employment and Housing Act or FEHA) (2) retaliation in violation of California state law (Civil Code section 1942.5); (3) breach of contract; (4) breach of covenant of good faith and fair dealing; (5) breach of covenant of quiet enjoyment; (6) failure to use reasonable care to protect tenants in violation of California state law (Civil Code section 1714); (7) trespassing in violation of Civil Code section 1954; (8) nuisance; (9) negligence; (10) intentional infliction of emotional distress; (11) constructive eviction; and (12) violation of Civil Code section 52.1 (the Tom Bane Civil Rights Act). As alleged in the FAC:

On August 18, 2022, pursuant to a rental agreement between the parties, plaintiff entered into possession of premises located at 1711 Grand Avenue in Santa Barbara, California (the premises) which is owned, maintained, operated, and managed by defendant. (FAC, ¶¶ 10-11, 14 & 16.)

On March 25, 2023, plaintiff fell down a stairway within the premises, causing plaintiff to sustain severe injuries and to be hospitalized for over a month. (FAC, ¶ 19.) Plaintiff initiated a claim against defendant's homeowner's insurance policy for damages related to the injuries plaintiff sustained from the fall (the Claim). (Id. at ¶¶ 19 & 31.) On March 19, 2024, plaintiff signed a release prepared by defendant's insurance carrier regarding the Claim. (Id. at ¶¶ 46-48.)

Beginning in November 2023, after receiving notice of the Claim, defendant and his girlfriend, Tina, began sending messages to plaintiff urging plaintiff not to pursue her legal rights with respect to the Claim, and threatening to evict plaintiff, to take away plaintiff's "section 8", to tell the housing authority that plaintiff has a problem with substance abuse, and to turn off plaintiff's hot water and electricity, among other things. (FAC, ¶¶ 20, 22-26, 30-33, 36, 39.) Defendant also demanded that plaintiff vacate the premises, and presented plaintiff with termination notices and notices to quit the premises. (Id. at ¶¶ 30, 32, & 36.)

In addition, Tina admitted to slashing a tire on plaintiff's car. (FAC, ¶ 27.) On two occasions, defendant entered the premises without prior warning or permission, yelling at plaintiff and calling her a "cunt", among other things. (Id. at ¶¶ 35-36.) Defendant also blocked plaintiff's access to her parking space, preventing her from leaving the premises. (Id. at ¶ 37.)

Though plaintiff complained about and asked defendant to cease, defendant's conduct, defendant ignored plaintiff's requests. (FAC, ¶ 41 & 43.) As a result of defendant's conduct, plaintiff experienced symptoms of "PTSD", had difficulty eating and sleeping, and lived in constant fear. (Id. at ¶¶ 28, 38, 42.) Plaintiff was forced to move out of the premises on February 29, 2024. (Id. at ¶ 45.)

On September 9, 2024, defendant filed an answer to the FAC, generally denying its allegations and asserting forty-four affirmative defenses.

On March 23, 2026, plaintiff filed the present motion for leave to file a second amended complaint (SAC) adding some additional allegations and a thirteenth cause of action for defamation and slander per se.

Defendant opposes the motion.

Analysis:

Pursuant to Code of Civil procedure section 473(a)(1), the court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading. The court's discretion will usually be exercised liberally to permit amendment of the pleadings. (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

"Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]" (Solit v. Tokai Bank (1999) 68 Cal.App.4th 1435, 1448.)

“(a) Contents of motion

A motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

“(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

“(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

“(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

“(1) The effect of the amendment;

“(2) Why the amendment is necessary and proper;

“(3) When the facts giving rise to the amended allegations were discovered; and

“(4) The reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(a)(b).)

Defendant argues that plaintiff has failed to state the reasons why the request for amendment was not made earlier. The court disagrees. The declaration of plaintiff's counsel, taken as a whole, explains that the allegedly defamatory conduct was, and is, a continuing pattern of behavior. It is reasonable to infer that it was not a few isolated cases of defendant's statements that constitute the entirety of the cause of action. Rather, it is the cumulative effect of the defamatory statements, including the alleged damages to plaintiff, that have resulted in the decision to include the cause of action. The court finds this explanation acceptable.

Defendant next argues that plaintiff has unreasonably delayed bringing the cause of action which has prejudiced plaintiff. Related to this argument is defendant's third, and final, argument that the new cause of action would necessitate additional discovery including a second deposition of plaintiff. There is currently no trial date and the need for additional discovery does not prejudice defendant. The court does understand that it might be prudent for defendant to conduct an additional deposition of plaintiff, related to the new cause of action. Recognizing this, and anticipating a request to do so, the court will specifically allow defendant to conduct an additional deposition that is limited to the defamation cause of action.

Judges

Judge Donna D. Geck

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